

December 14, 2025. Plaintiff's discovery motions were filed on May 10, 2021, and the ruling was issued on February 3, 2025. Plaintiff attributes these delays in part to the approximate 18 months in which he was denied access to his case files, and defendants in the reply do not dispute this.

Given the unusually long time it has taken to bring these matters to ruling, and undisputed loss of access to court files despite frequent requests for restored access, the court finds that the five-year period should be tolled an additional 18 months due to impossibility and/or impracticability under Code of Civil Procedure section 583.340, subdivision (c).

"The statutory right of access to the courts, which has constitutional foundations, is more important than the procedural requirement established for the efficient operation of the courts." (*Crane v. Dolihite* (2021) 70 Cal.App.5th 772, 792.) Where an indigent prisoner litigant is denied this access to the courts through actions of prison officials, such time is considered impossible, impracticable or futile for purposes of the requirement of service of summons within three years. (*Ibid.*) The same principle applies to dismissal for failure to prosecute. The court finds that plaintiff being deprived of access to his case files rendered it impossible or impracticable to bring the case to trial within five years, warranting extension of the five-year period for the time of denied access. Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

**Tentative Ruling**

Issued By: Img on 6-2-26.  
(Judge's initials) (Date)

(48)

**Tentative Ruling**

Re: ***Aguilar v. Shin, et al.***  
Superior Court Case No. 25CECG04672

***Quintero v. Shin, et al.***  
Superior Court Case No. 25CECG04880

Hearing Date: June 3, 2026 (Dept. 403)

Motion: by Defendants to Consolidate Actions

**Tentative Ruling:**

To grant. (Code Civ. Proc., § 1048, subd. (a).) Superior Court Case No. 25CECG04672 is consolidated with Superior Court Case No. 25CECG04880 for all purposes, with Superior Court Case No. 25CECG04672 being designated as LEAD. Defendants Chul Kyu Shin and Linda Shin Jeehyun are ordered to file and serve a notice of entry of this order in all actions, properly captioned with all case names and numbers. All further documents shall be filed only in the lead case.

**Explanation:**

Under Code of Civil Procedure section 1048, subdivision (a):

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The procedural requirements under California Rules of Court, rule 3.350, require a separate copy of the notice of motion for consolidation must be filed by the moving party in each case that the party seeks to consolidate. (Cal. Rules of Court, rule 3.350(a)(1)(C).) However, the supporting memorandum, declarations, and other papers only need to be filed in the lowest numbered case. (*Id.*, rule 3.350(a)(2)(A).)

Here, the actions stem from the same motor vehicle incident and involve common questions of law and fact such that consolidation for all purposes would promote judicial economy and convenience.

Although there is a technical defect in the motion, the court finds that defendants have substantially complied with the requirements for a motion to consolidate. The defect is non-prejudicial because all parties were noticed of the motion. Therefore, the court will grant the motion despite the procedural defect.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

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